



Tammy Buchanan <tammy.buchanan@dataprotection.education>

Re: Advice re how medical information is stored

1 message

Tammy Buchanan <tammy.buchanan@dataprotection.education>

18 May 2023 at 16:35

To: Mary Dew-Jones <mary.dew-jones@leesons.bromley.sch.uk>

Bcc: Tammy Buchanan <tammy.buchanan@dataprotection.education>

Hi Mary,

Thank you for your email. We get asked this question a lot and see various solutions. I also visit special schools where every child has some kind of disability and so a lot of important data that is needed and see it done well there, but their building set up is often different - these kinds of schools don't often have the information displayed on the wall unless it is in a locked room and then it is in a folder.

We would always say consider who will see the data and check you are using the minimal amount of data and consider whether it could be done in a more secure way. Putting up photos of the children in areas with details of their special needs is 'passive' training. A member of staff is unlikely to 'run' to these displays to see what needs to be done in an emergency, especially if they are not in the vicinity.

A good way to think about it is if these were files on the network would you give all staff and everyone that comes into the building access to them? The answer to that is probably No.

It is important that all the relevant staff have the right training to know who the children are. These are some of the solutions I have seen in some mainstream schools and the special schools:

- regular training
- information on the MIS
- a designated medical member of staff who knows all of the information
- folders (not transparent) in the same place in every class with the required information - always locked away when the room is vacant

Risks to consider (which I won't know):

- who has access to these areas ?
- do any external people have access to these areas?
- is the room locked?
- are there lettings in the building?

I will put below some of the feedback that I would normally give to schools following a data walk. I am due to visit Leesons at the end of June by the way. I have also attached an infographic which you might find helpful.

Medical & Allergy Files: ensure these are in a secure area both in the classrooms and the admin office. Medical information is covered under Article 9 of the UK GDPR where it is classified as special category data. The ICO states that special category data is personal data that needs more protection because it is sensitive:

<https://ico.org.uk/for-organisations/guide-to-data-protection/guide-to-the-general-data-protection-regulation-gdpr/lawful-basis-for-processing/special-category-data/>

Further information about sharing children's data: <https://ico.org.uk/for-organisations/guide-to-data-protection/ico-codes-of-practice/data-sharing-a-code-of-practice/data-sharing-and-children/>

For displays of medical info on boards- The definition of confidential is 'intended to be kept secret', 'entrusted with private or restricted information', which is not the case when on a classroom notice board. Would recommend a less passive method of training for this for staff, including keeping the information online where there are already appropriate access controls, to make it more secure. Often these folders are printed as a way to inform supply teachers or someone in the class who is not the usual teacher and this has become more prevalent since Covid. If there is deemed to be a necessity for this, advice would be to put the information in a private (not transparent) folder in the same place in every classroom, preferably in the top drawer of the class teacher's desk (which is lockable), then each new person would know where to find that information in each class. Recital 83 of the GDPR is about maintaining security and to prevent processing in infringement of this regulation, the controller or processor should evaluate the risks inherent in the processing and implement measures to mitigate those risks.

Inclusion/SEN: DfE guidance is that any information relating to such data as:

- A safeguarding matter
- Pupils in receipt of pupil premium
- Pupils with special educational needs and disability (SEND)
- Children in need (CIN)
- Children looked after by a local authority (CLA)

It is best practice to also treat as special category data. Special category data is considered more sensitive and given greater protection in law: <https://ico.org.uk/for-organisations/guide-to-data-protection/guide-to-the-general-data-protection-regulation-gdpr/lawful-basis-for-processing/special-category-data/>

I hope that helps,

Many thanks,
Tammy

Many thanks,
Tammy

On Thu, 18 May 2023 at 09:32, Mary Dew-Jones <mary.dew-jones@leesons.bromley.sch.uk> wrote:

Hi Tammy,

Just wondering if you could help with a GDPR conundrum!

We're having a bit of a rethink of how medical information (specifically for children with EpiPens/Epilepsy) is stored in classrooms/across the school.

Are there any GDPR problems with the following?

I'd like to keep medical folders stored in a clear perspex wall-mounted holder so that they are obvious to all staff. Ideally they would have a sign on the outside saying where the medication is kept. I'm aware some medical folders are stored in cupboards that would not be obvious to cover staff and would not be immediately obvious in an emergency. It's been suggested to me that there might be a GDPR problem with this as anyone would be able to access it easily (but obviously this is the point in an emergency!).

Secondly, we used to have signs up in the staff room/medical room with photos/names of children with Epilepsy/EpiPens. I understand these were taken down due to GDPR, but again this information is important for all staff to know in an emergency - do you know how other schools get round this problem?

Thanks very much for your help!

Kind regards,

Mary Dew-Jones
SENCo Assistant

My work hours are Tuesday (10-4), Wednesday (10-4), Thursday (8:30-12:30)



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